

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: June 5, 2026

1	Nelson vs. True Home Builders, INC 2024-01448292	Motion to Strike Portions Of Complaint Defendants Coast Geotechnical, Inc. and Dan Herc's Motion to Strike Portions of the First Amended Complaint is DENIED. Moving Defendants have failed to engage in the meet and confer process prior to filing the motion. (Code Civ. Proc. § 435.5) Counsel for Moving Defendants offers no explanation for why he did not comply with the Code.
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		Moreover, the motion is untimely. Defendant Coast Geotechnical Inc. Defendant Coast Geotechnical Inc. filed an Answer to the FAC on November 10, 2025. Defendant did not file this motion to strike until February 11, 2026. A motion to strike must be filed "within the time allowed to respond to a pleading," which is 30 days after service of the complaint unless extended by court order or stipulation. (Code Civ. Proc. § 435(b)(1).) Here, the motion was filed three months after the FAC was served and three months after Defendant had filed an Answer to the FAC. The court in <i>City and County of San Francisco v. Strahlendorf</i> (1992) 7 Cal.App.4th 1911, rejected a motion to strike that was filed "long after respondent had filed his answer to the complaint, holding that such a motion was unavailable under the circumstances. (Id. at 1913; see also <i>Adohr Milk Farms, Inc. v. Love</i> (1967) 255 Cal.App.2d 366, 370 [holding that a defendant can move to strike complaint only before he has answered it and not afterward.].) While the court has discretion to hear a late filed motion to strike (Code Civ. Proc., § 436), it declines to exercise such discretion where, as here, the moving party failed to engage in the meet and confer process and offers no explanation why the motion was untimely filed. Defendant Herc No Answer has been filed by Defendant Herc, despite representation by the same counsel as Coast Geotechnical and service of the FAC on his counsel on November 3, 2025. However, as stated above, counsel for Herc failed to engage in the meet and confer process, and the motion is untimely. The court declines to exercise its discretion to hear the late filed motion of Defendant Herc in light of the circumstances.
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		Accordingly, Moving Defendants' motion is DENIED in its entirety. Moving Parties shall give notice.
3	Claude Parrish vs. Assessment Appeals Board No. 3 for the County of Orange 2025-01489959	Petition for Writ *****
4	Saguilan vs. Santa Ana Unified School District 2024-01442239	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted Defendant Santa Ana Unified School District's motions to compel plaintiff Concepcion M. Saguilan to respond to Form Interrogatories, set one and Request for Production of documents, set one are GRANTED. District's motion to deem matters admitted is GRANTED. Sanguilan to pay District sanctions in the total amount of \$2,125.00. The sanction request is too high. There was no opposition to the motions and therefore no opposition review or reply preparation was necessary. The total award a total of 8.5 (2.5 hours motion preparation time x3 + 1 hour total hearing time) hours @ \$250.00 per hour for a total award of \$2,125.00, payable within 30 days. Moving Party shall give notice.